
10 June 2026

The Judge President / Duty Judge

Labour Court of South Africa

Western Cape Division

Cape Town

**RE: URGENT REQUEST FOR JUDICIAL INTERVENTION — APPLICATION FOR
DEFAULT JUDGMENT — CASE NO: 2026-077546 — W.W. MATTHEE v
AFROCENTRIC HEALTH (RF) (PTY) LTD & ANOTHER**

To The Honourable Judge President / Duty Judge,

A. INTRODUCTION AND PROCEDURAL BACKGROUND

1. The Applicant, Wilbur William Matthee, is a self-represented litigant who instituted proceedings in this Honourable Court under Case No. 2026-077546 for the recovery of an unlawfully deducted salary amount of R14,811.77, constituting a contravention of Section 34 read with Section 77A of the Basic Conditions of Employment Act 75 of 1997 ("the BCEA").
2. The following procedural timeline is placed before this Honourable Court:
 - (a) Service was effected on the Respondents on 14 April 2026, deemed good service in terms of Rule 7 of the Labour Court Rules.
 - (b) The statutory opposition period expired on 29 April 2026 (10 business days, accounting for the public holiday of 27 April 2026).
 - (c) The Application for Default Judgment, together with a Practice Note and Affidavit of Service, was formally filed with the Registrar on 30 April 2026.
 - (d) As of the date of this letter, the Respondents have filed no Notice of Intention to Oppose and no answering papers. The matter is accordingly wholly unopposed.

3. The Applicant first wrote to the Registrar, Ms. Farzaana Ismail, on 08 May 2026 requesting allocation of a date on the Unopposed Roll or referral to a Judge in Chambers. On 12 May 2026, the Registrar acknowledged receipt and advised that the matter had been placed on the backlog. A further follow-up email was sent on 03 June 2026. As of the date of this letter, no date has been allocated and no further response has been received.

B. GROUNDS FOR URGENT INTERVENTION

4. The Applicant approaches this Honourable Court on an urgent basis pursuant to Rule 8 of the Labour Court Rules on the following grounds:
 - (a) The Applicant has received no salary since November 2025. The Respondents' unlawful conduct has rendered the Applicant financially destitute.
 - (b) The Applicant's debts are compounding daily, with attendant risk of adverse credit action, eviction, and inability to meet basic subsistence needs.
 - (c) The claim is for a liquidated, arithmetically certain amount of R14,811.77. It raises no disputed facts and requires no oral evidence.
 - (d) The matter has been ripe for hearing since 29 April 2026 — more than six weeks as at the date of this letter — without any judicial attention.
 - (e) The Applicant cannot bring a formal urgent application in the ordinary sense, as he has no income and cannot afford the associated costs. Equity and justice demand that the delay in the administrative process not be visited upon a destitute, self-represented litigant.
 - (f) The Applicant submits that the standard administrative backlog process is constitutionally inadequate in the present circumstances, having regard to the right of access to courts enshrined in Section 34 of the Constitution of the Republic of South Africa, 1996.

C. RELIEF SOUGHT

5. The Applicant respectfully requests that this Honourable Court:
 - (a) Direct the Registrar to place the file before a Judge in Chambers for a final default judgment order as a matter of urgency; or

- (b) Allocate the matter to the next available date on the Unopposed Roll, with the Registrar notifying the Applicant of such date by no later than 13 June 2026; or
- (c) Issue such further or alternative directions as this Honourable Court deems appropriate to give effect to the Applicant's constitutional right to have his dispute resolved without undue delay.

D. CONFIRMATION OF DOCUMENTS ON FILE

- 6. The following documents are already on the court file and available to the presiding Judge:
 - (a) Notice of Application for Default Judgment (filed 30 April 2026).
 - (b) Applicant's Founding Affidavit.
 - (c) Applicant's Practice Note (confirming a duration of 10 minutes or consideration in Chambers).
 - (d) Affidavit of Service (confirming service to the Respondent's authorised email address on 14 April 2026).
 - (e) Proof of salary deduction and supporting payroll records.

E. CONCLUSION

- 7. The Applicant submits that this matter is straightforward, unopposed, and ripe for finalization. The only obstacle to justice is administrative delay. A self-represented litigant in a state of financial destitution should not bear the consequences of that delay.
- 8. The Applicant stands ready to appear before this Honourable Court at any time and on the shortest possible notice, and will immediately furnish any further documentation required.

The Applicant respectfully trusts that this Honourable Court will intervene in the interests of justice.

Yours faithfully,

WILBUR WILLIAM MATTHEE

Applicant (Self-Represented)

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CC: Ms. Farzaana Ismail, Registrar — Labour Court, Cape Town (FIsmail@judiciary.org.za)